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CASE #	CASE NAME	HEARING NAME
CVRI2302933	MORGAN vs SAN GORGONIO MEMORIAL HOSPITAL	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SETS SEVEN AND EIGHT, AND REQUEST FOR PRODUCTION, SET SIX

Tentative Ruling:

GRANT the motion.

Defendant San Gorgonio Memorial Hospital is Ordered to serve verified, code-complaint further responses to Special Interrogatories, Set Seven, Nos. 88 and 90, and Special Interrogatories, Set Eight, Nos. 96, 98-121, 124-127, 129-171, 173-174, without objections, within 20 days.

Defendant San Gorgonio Memorial Hospital to pay monetary sanctions to Plaintiff's counsel in the reduced reasonable amount of \$1,790 (7 hours at \$250/hour plus \$40 filing fee), within 30 days.

Defendant has indicated that it has served further responses to the Request for Production of Documents (RFP), rendering the motion moot as to the RFPs.

These special interrogatories seek the factual basis for Defendant's contention that it did not neglect Plaintiff during his admission to Defendant's hospital. Defendant relies on CCP § 2030.230 in response, which permits a party to refer to documents in answer to the interrogatory, but Defendant's response is inadequate. The description of the documents that are responsive must contain sufficient detail to allow the propounding party to locate and identify those documents. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 784.) Referring to "only one set of documents, plaintiff's medical records from SAN GORGONIO," organized by "record type (nursing notes, orders, physician notes, etc.)," is insufficient. Defendant offers only a generalized reference to voluminous records, leaving Plaintiff to guess which facts Defendant believes support its position. Rather than identifying any particular document or Bates ranges, Defendant refers generally to entire categories of records. Such a response does not enable Plaintiffs to determine what facts Defendant actually relies upon to support its contentions. For Special Interrogatories Nos. 99, 124, and 174, Defendant again fails to identify facts supporting its contentions and Defendant either provides a nonresponsive answer or merely restates its ultimate conclusion.